

P.Abbulu vs M.Rama Mohana Veera Venkata ... on 7 May, 2020

Author: Cheekati Manavendranath Roy

Bench: Cheekati Manavendranath Roy

1

HONOURABLE SRI JUSTICE CHEEKATI MANAVENDRANATH ROY

Appeal Suit No.1291 of 2002

Judgment:

This appeal is directed against the judgment and decree dated 22-4-2002 passed in O.S.No.41 of 1998 on the file of the I Additional District Judge, Rajahmundry, East Godavari District, whereby the suit filed by the sole plaintiff for declaration of his title to the plaint A, B, C and D schedule properties and for recovery of possession of A, B and C schedule properties and for return of moveables shown in plaint D schedule or the value thereof was dismissed.

2. The facts of the case as pleaded by the plaintiff may briefly be stated as follows:

(a) One Mutyala Satyavathi is the absolute owner of plaint A and D schedule properties which are her self-acquisition property. Her husband Gani Raju was the owner of plaint B and C schedule properties which are his self-acquired property. The said property is in the effective control and possession of Satyavathi and she used to manage the same. They have no issues. Therefore, Satyavathi and

Gani Raju have adopted the defendant as their adopted son on 19-6-1991. The said adoption is not legally valid and enforceable as the defendant was aged about 16 years on the date of the said adoption. The defendant and his natural parents suppressed the said fact that he is aged about 16 years and fraudulently gave him in adoption to Satyavathi

2

and Gani Raju. Subsequently, the said fact came to the notice of Satyavathi. So, no rights are created in favour of the defendant as the adopted son of Satyavathi and Gani Raju.

(b) While so, Gani Raju died intestate on 11-7-1993 leaving behind his wife Satyavathi as his sole surviving legal heir. So, his property devolved on his wife Satyavathi. Therefore, Satyavathi became absolute owner of plaint A to D schedule properties and she has been in possession and enjoyment of the same, managing the said property till January, 1998. The defendant went back to his natural parents who are at Peyyeru Village in Krishna District about two years prior to January, 1998 renouncing his character as adopted son of Satyavathi and Gani Raju as Satyavathi did not agree to give any of the plaint A to D schedule properties to him.

(c) Satyavathi became old and as it is difficult for her to manage her properties in the said old age without any male assistance to look after herself and her properties, she shifted her residence from Subhadrapuram to the house of the

plaintiff, who is the son of her brother at Teki Village in January, 1998. Since then, the plaintiff is looking after her welfare. The plaintiff and his father are managing the property of Satyavathi. The defendant made an attempt to take forcible possession of the plaint schedule properties but was in vain.

3

(d) While so, on 08-5-1998 Satyavathi executed a Will in favour of the plaintiff in a sound disposing state of mind bequeathing plaint A to D schedule properties in his favour. On 09-5-1998 she was suddenly subjected to ill health on account of paralysis at Teki Village. She was immediately admitted in the hospital. The defendant and his father harassed her in the hospital while she was taking treatment by making illegal demand to give her property to them. Satyavathi lodged a report with the Police on 18-5-1998 against them and also sought protection from them. The defendant and his father forcibly abducted her from the hospital on 25-5-1998 at 06.00 p.m., and she died on 26-5-1998.

(e) After her death, the plaintiff became absolute owner of plaint A to D schedule properties by virtue of the Will dated 08-5-1998 executed by Satyavathi in his favour and he has been in possession and enjoyment of the plaint A and B schedule properties from the date of the demise of the said

Satyavathi. The defendant high-handedly took possession of C schedule property on 23-5-1998 by breaking open the lock of the house and committed theft of 80 kata bags of paddy stored in the granary shown in D schedule properties along with other gold etc. The defendant also trespassed into plaintiff A and B schedule properties on 28-5-1998 and dispossessed the plaintiff forcibly from the said property. The defendant has no right whatsoever on the plaintiff schedule properties.

4

The plaintiff schedule property is not an ancestral joint family property. So, the defendant has no right over the said property. The plaintiff alone is the owner of the said property by virtue of the Will dated 08-5-1998. Therefore, he has prayed to declare his title to the plaintiff schedule property and also sought recovery of possession of the plaintiff schedule properties after ejecting the defendant therefrom.

(f) The sole defendant resisted the said suit. He has filed his written statement opposing the claim of the plaintiff. It is his case that late Satyavathi and Gani Raju have taken him adoption in the year 1991 and the said adoption is legally valid. There is no contravention of requirements as to his age in any manner as enjoined under law on the date of adoption. Even otherwise, since there is a custom among "Kamma" community in the locality of taking adoption of persons beyond 15 years of age, his adoption even as per their custom is valid. The said custom is in vogue for a long time in the

community. In fact, the defendant has not completed the age of 15 years as on the date of adoption and he was only aged about 14 years at that time as he was born on 04-4-1977.

Therefore, it was a valid adoption. Late Satyavathi never disputed the validity of the adoption at any time during her life time. She and her husband treated him as their adopted son from the date of the adoption. The defendant also lived with them and after the death of Gani Raju, he lived with Satyavathi during her life time. Satyavathi, Gani Raju and

5

the defendant treated plaint B and C schedule properties as their joint family properties and they all together enjoyed the same and managed the same. His adoptive father had ancestral nucleus as a base for acquisition of plaint B and C schedule properties and as such they constitute joint family property of Gani Raju. He used to manage the properties during the life time of Satyavathi and after her death on 26-5-1998, he continued to be in possession of the plaint schedule property as the sole legal heir of Satyavathi as he inherited the same as her adopted son.

(g) Satyavathi performed his marriage during her life time in the month of July, 1995. When his wife became pregnant and went to her parents' house in Karnataka State and gave birth to a child on 16-4-1998, at the instance of Satyavathi his mother, he went to his in-laws' house in

Karnataka in the first week of May, 1998 to see his wife and newly born child and to attend the naming ceremony of the child. When he returned home on 18-5-1998, to his surprise, he found the door of the house locked. On enquiry from the neighbours, he came to know that the plaintiff has shifted his adoptive mother Satyavathi to the hospital and locked the door of the house on 09-5-1998. Immediately, he went to the hospital at Mandapet and found his mother Satyavathi in a bad health condition and she was even unable to identify him. When the defendant asked the plaintiff, who was present there in the hospital for the keys of his house he gave

6

evasive replies. So, the defendant got suspicion over him at that time and he sought intervention of the elders. Yet, he could not secure the keys from him. So, he has no other go except to break open the lock of the house on 23-5-1998 in the presence of the elders. At that time, he found moveable properties which are shown in the plaint schedule including his documents like adoption deed, tax receipts, patta pass books, title deed etc., missing which inferred that the plaintiff has taken away all the said documents with a male fide intention to deprive him of his property to which he is legally entitled. He lodged a report with the Police in this regard.

(h) He denied that late Satyavathi executed Will dated 08-5-1998 in favour of the plaintiff in respect of the plaint schedule properties. He pleaded that she never executed any

such Will dated 08-5-1998 in favour of the plaintiff. It is stated that taking undue advantage of the ill health of Satyavathi and her poor mental and physical condition in the hospital that the plaintiff has taken her thumb marks on blank paper and got the Will dated 08-5-1998 fabricated with the help and aid of professional scribe and attestors who oblige him. Therefore, the said Will is a rank forgery and it is not true and valid and binding on him. No rights accrued to the plaintiff under the said Will and it is pressed into service by the plaintiff only to grab the plaintiff schedule property. In fact, late Satyavathi went into coma and the doctors opined that her life is coming to an end and on the advice of the

7

doctors, she was discharged on 25-5-1998 at about 05.00 p.m. and the defendant took her to Subhadrapuram and she survived till 06.00 a.m. on the next day. It is pleaded that the plaintiff was never in possession of A, B and C schedule properties at any time before and subsequent to the death of Satyavathi. Therefore, he prayed for dismissal of the suit.

(i) Subsequently, the defendant filed a counter claim under Order VIII, Rule 6 of CPC for recovery of a sum of Rs.95,000/- towards damages against the plaintiff with interest at 12% per annum thereon.

(j) The plaintiff filed a rejoinder to counter claim filed by the defendant stating that he is not liable to pay any such

damages.

(k) On the basis of the pleadings of both the parties, the following issues were settled for trial in the trial Court:

1. Whether late Mutyala Satyavathi, wife of Giri Raju, is the absolute owner of the plaint A, B and C schedule properties ?
2. Whether the Will dated 08-5-1998 alleged to have executed by late Mutyala Satyavathi in favour of the plaintiff bequeathing the plaint ABCD schedule properties is true, valid and binding on the defendant ?
3. Whether the adoption of the defendant by Mutyala Satyavathi and her husband Gani Raju under adoption deed dated 19-6-1991 is not legally valid and unenforceable under law ?
4. Whether the plaint B and C schedule properties are the joint family properties of late Mutyala Gani Raju, the husband of Satyavathi and the defendant as claimed by the defendant ?
5. Whether the defendant took forcibly possession of the house property i.e. C schedule property on 23-5-1998 night by break open the pad-lock as alleged in the plaint ?
6. Whether the defendant committed theft of plaint D schedule moveables on 25-5-1998 as alleged in the plaint ?

8

7. Whether the defendant has become the absolute owner of the plaint A to C schedule immoveable properties after the death of Mutyala Gani Raju and his wife Satyavathi ?
8. Whether the plaintiff is entitled to the declaration that he has acquired right, title and interest over the plaint A, B, C and D schedule properties under the Will dated 08-5-1998 ?
9. Whether the plaintiff is entitled to recover possession of plaint A B C D schedule properties after ejecting the defendant therefrom ?
10. Whether the defendant is entitled to the return of the plaint C schedule moveables or its value thereof ?
11. Whether the plaintiff has a right to claim future mesne profits for the year 1998 as alleged in the plaint ?
12. Whether the plaintiff committed breach of entrustment of the property lying in the plaint C schedule as alleged in the counter claim made by the defendant ?
13. Whether the plaintiff is liable to pay counter claim made by the defendant by way of damages to the tune of Rs.95,980/- to the defendant ? and
14. To what relief ?

(l) During the course of the trial of the suit, the plaintiff got himself examined as P.W.1 and got examined P.Ws.2 to 12 witnesses and got marked Exs.A-1 to A-35 documents in

proof of his case. The defendant was examined as D.W.1 and he got examined D.Ws.2 to 16 witnesses and got marked Exs.B-1 to B-23 to substantiate his case.

(m) At the culmination of the trial of the suit, after hearing both the parties to the suit and upon considering the evidence on record, the learned I Additional District Judge held issues 1 to 11 against the plaintiff and in favour of the defendants and issues 12 and 13 which relate to counter claim against the defendant and in favour of the plaintiff and thereby dismissed the suit and also the counter claim.

9

(n) Aggrieved thereby, the plaintiff has preferred the present appeal questioning the legality and validity of the impugned judgment in dismissing the suit.

3. When the appeal came up for hearing before this Court, heard Sri Ch.V. Prasad Babu, learned counsel for the appellant and Smt. Lakshmi Neelima, learned counsel, representing Sri G.Krishna Murthy, learned counsel for the respondent.

4. For the sake of convenience, the parties will be referred as they are arrayed in the plaint in this appeal suit also.

5. The points that emerge for determination in this appeal are:

1. Whether the adoption of the defendant taken by Satyavathi and Gani Raju under Ex.B-4 registered adoption deed is valid under law and

whether the defendant is adopted son of late Satyavathi and her husband Gani Raju ?

2. Whether the unregistered Will dated 08-5-1998 relied on by the plaintiff is true, valid and binding on the defendant ?

3. Whether the plaintiff became absolute owner of the plaint schedule properties by virtue of the Will dated 08-5-1998 pleaded by him and whether he is entitled for declaration of his title to the plaint schedule property and for recovery of the said property after ejecting the defendant therefrom ?

4. Whether the defendant became absolute owner of the plaint schedule property after the demise of Satyavathi as sole surviving legal heir as the adopted son of late Satyavathi and her husband Gani Raju ?

5. Whether the impugned judgment and decree of the trial Court are sustainable under law and whether they warrant interference of this Court and whether they are liable to be set aside ? and

6. To what relief ?

10

6. Point No.1: Before advertng to the point, a few admitted facts relevant in the context require to be noticed and taken into consideration. Admittedly, the property in question belongs to late Satyavathi and her husband Gani Raju. They are the absolute owners of the said property. The plaintiff himself has unequivocally pleaded in his plaint that Satyavathi owned and possessed plaint A and D schedule property and it is her self-acquired property and her husband Gani Raju was the owner of plaint B and C schedule property and it is his self-acquired property. Even the defendant did not dispute the said fact that both Satyavathi and her husband Gani Raju are the absolute owners of the plaint A to D schedule property. So, indisputably late Satyavathi and Gani Raju are the absolute owners of the said property. Admittedly, they do not have any issues. So, the legal tussle is inbetween the plaintiff and the defendant who

are claiming to be the owners of the said property after their demise. The plaintiff claims the said property on the strength of the Will dated 08-5-1998 said to have been executed by late Satyavathi during her life time bequeathing the said property in his favour. The defendant claims the said property in his capacity as an adopted son of Satyavathi and Gani Raju under Ex.B-4 certified copy of the registered adoption deed. Therefore, the findings given on point No.1 and point No.2 would decide as to who is entitled to the said property.

11

7. Now, coming to point No.1, which relates to the validity of adoption of the defendant as their son by late Satyavathi and her husband Gani Raju is concerned, it is significant to note that as can be seen from the pleadings in the plaint, the plaintiff did not deny the factum of the said adoption. He has categorically and unequivocally admitted that Satyavathi and Gani Raju have adopted the defendant as their son on 19-6-1991. It is clearly pleaded and admitted in the plaint that the defendant was adopted by Mutyala Satyavathi and her husband Gani Raju. However, he only pleads that the said adoption is not valid and enforceable as the defendant is aged above 15 years and was aged about 16 years at the time of the said adoption and as such the said adoption is not valid and no rights would accrue to the defendant as the adopted son of Satyavathi and Gani Raju

and as such he cannot claim any right in respect of the plaint schedule properties as their adopted son.

8. In order to appreciate the said contention, it is expedient to go through Section 10 of the Hindu Adoption and Maintenance Act, 1956, wherein certain conditions are enumerated for valid adoption of a child. It reads thus:

"10. Persons who may be adopted- No person shall be capable of being taken in adoption unless the following conditions are fulfilled, namely-

- (i) he or she is a Hindu;
- (ii) he or she has not already been adopted;

12

- (iii) he or she has not been married, unless there is a custom or usage applicable to the parties which permits persons who are married being taken in adoption;
- (iv) he or she has not completed the age of fifteen years, unless there is a custom or usage applicable to the parties which permits persons who have completed the age of fifteen years being taken in adoption."

9. Clause (iv) of the above Section 10 is relevant in the context to resolve the present controversy. It says that no person shall be capable of being taken in adoption if he completes the age of 15 years, unless there is a custom or usage applicable to the parties which permits persons who have completed the age of 15 years being taken in adoption.

10. Therefore, from a plain reading of the above, it is manifest that a person who has completed the age of 15 years cannot be taken in adoption. However, there is an exception to the said rule and if there is a custom or usage prevailing in the said community of taking a person who is above the age

of 15 years in adoption, then the adoption of a person who is aged about more than 15 years would also be a valid adoption. Therefore, in the light of the condition in Clause (iv) of Section 10 of the Act, the present controversy is to be resolved.

11. Although the plaintiff unequivocally admitted the factum of adoption of the defendant by Satyavathi and Gani Raju, he sought to assail the said adoption before the trial Court on the ground that necessary requirement of actual giving and taking the child in adoption between the natural

13

parents and the adoptive parents is not established and that Ex.B-4 certified copy of the adoption deed is not valid in evidence. The trial Court rejected both the said contentions by recording valid reasons to that effect on proper appreciation of evidence on record. In fact, the defendant has adduced evidence in proof of actual taking and giving in adoption between the natural parents and adoptive parents in the trial Court. The natural father of the defendant, who is the best person and competent witness to prove that the defendant was actually given in adoption by him and taken as adopted son by his adoptive parents, was examined as D.W.3 and the defendant also got examined D.W.4 and D.W.10 witnesses who officiated the ceremony of adoption. They spoke about the factum of adoption and also regarding the

fact that the defendant was in fact given in adoption by his natural parents and was taken in adoption by the adoptive parents at the time of adoption. D.Ws.9, 10, 14, 15 and 16 also spoke regarding the factum of adoption in their evidence. Exs.B-9 to B-14 are the photographs with corresponding negatives taken at the time of adoption of the defendant and these photographs and negatives are proved by the evidence of D.W.13, who is the photographer. So, the oral evidence of D.Ws.3, 4 and 10 and the oral evidence of D.Ws.9, 14, 15 and 16 coupled with Exs.B-9 to B-14 photographs clinchingly proves that the defendant was given in adoption by his natural parents to Satyavathi and Gani Raju and they as

14

adoptive parents have taken the defendant in adoption as their adopted son. Therefore, the necessary requirement of giving the defendant in adoption by the natural parents and taking the defendant in adoption by the adoptive parents has been amply proved in this case with acceptable legal evidence.

12. As regards the contention of the plaintiff that the defendant was aged more than 15 years at the time of the adoption and the said fact is suppressed by his parents and they have deceptively given the defendant in adoption to Satyavathi and Gani Raju and that Satyavathi subsequently came to know about the said fraud and did not accept the defendant as her adopted son and the defendant also relinquished his character as her adopted son and went back

to his natural parents is concerned, the evidence on record completely belies the said contention. Admittedly, the adoption took place on 19-6-1991. Ex.B-4 is the certified copy of the registered adoption deed executed to that effect. This document proves that the defendant was taken in adoption by his adoptive parents from his natural parents.

13. Now, it is to be seen whether the defendant was aged more than 15 years at the time of the said adoption or not. It is the case of the defendant that he was born on 04-4-1977. To substantiate the said material fact, he has examined his natural father D.W.2 and he has also produced Ex.B-8 which is the extract of the record from the Primary School run by Mandal Parishad. To prove this Ex.B-8, he has

15

examined D.W.7, who is the Head Master of the said Mandal Praja Parishad Elementary School, Atchuthapuram. D.W.2, who is the natural father of the defendant, is the best person and competent witness being his natural father to speak about the date of birth of the defendant. His evidence proves that the defendant was born on 04-4-1977. His evidence further shows that his marriage actually took place on 16-11-1975 in Annavaram. Apart from this evidence of D.W.2, the natural father of defendant, the evidence of Ex.B-8 which is the extract of the school register also proves that the defendant was born on 04-4-1977. D.W.7, the Head Master,

stated that he issued Ex.B-8 certificate and he brought the original admission register of the school from the year 1977 and as per the entry at page-15 of the original admission register, the defendant was admitted into the school in the second class on 18-6-1982 under Admission No.930 and he further deposed that the defendant studied in their school up to fourth class and as per the entries in the admission register, his date of birth is 04-4-1977. He has also stated that he issued Ex.B-8 on the basis of the entries in the original admission register of the school. The Photostat copy of the entries at page-14 of the original register is Ex.B-20. Therefore, the evidence of D.W.2 coupled with Ex.B-8 and the testimony of D.W.7 who proved Ex.B-8 now proves that the defendant was born on 04-4-1977. So, it is now evident that he was aged about 14 years at the time of his adoption in the

16

year 1991. Whether the adoption was on 17th as contended by the plaintiff or on 19th of June, 1991, it makes no difference and as per the evidence discussed supra, it is now established beyond doubt that the defendant was only aged about 14 years at the time of his adoption. So, he is well within the age limit of 15 years as contemplated under Clause (iv) of Section 10 of the Act. The contention of the plaintiff that Ex.B-8 certificate is not valid has been rightly rejected by the trial Court for the reasons recorded in the impugned judgment. So, the said adoption is legally valid.

14. Even otherwise, it is the case of the defendant that he belongs to Kamma caste and there is a custom or usage in his caste of adopting persons more than 15 years and as such even if he is more than 15 years of age as contended by the plaintiff that still the said adoption is valid.

15. It is already noticed that there is an exception contained in Clause (iv) of Section 10 of the Act stating that if there is a custom or usage prevailing in any particular community of taking persons more than 15 years in adoption then the said adoption of a person beyond 15 years of age would also be a valid adoption. The defendant has examined D.W.11 to prove that there was such custom or usage prevailing in their caste. This D.W.11 deposed that he was adopted by one Damina Lakshmi Narasamma, wife of late Veeranna under Ex.B-22 registered adoption deed dated 03-02-1947 and he was aged 18 years at the time of the said

17

adoption and as he belongs to Kamma community that there is a custom in their caste of adopting a person of any age before marriage. He also stated that Ex.B-23 is his date of birth certificate which shows that he was born on 01-7-1929. He also stated that about four years ago, one B.Rama Rao of Kodamanchili Village of West Godavari District adopted one Kanumuri Satyanarayana Murty of Teki Village who was also aged about 18 years at the time of the adoption.

The said

evidence of this D.W.11 who deposed relating to the fact that there was a custom or usage prevailing in their community of adopting persons more than 15 years of age was not shattered or shaken in any way in his cross-examination to discredit his testimony given to that effect. The said evidence of D.W.11 establishes that there is a custom or usage prevailing since long in their community of adopting persons more than 15 years of age. Therefore, even if the defendant is more than 15 years age at the time of the adoption under Ex.B-4 as contended by the plaintiff, still the said adoption is valid under Clause (iv) of Section 10 of the Act. The Andhra Pradesh High Court in the case of State of A.P. v. M.Pullam Raju¹ held at para-3 of the judgment as follows:

"3. ... Sec.10(iv) of the Act, therefore, leaves no doubt in my mind that if any boy or girl to be adopted, even though completed 15 years on the date of the adoption, would be eligible for valid adoption provided there is any custom or usage prevalent in the particular caste or community to which the parties belong."

1 1980(1) A.P.L.J. 356

16. At para-4, the Court further held as follows:

"4. This view of mine gains support from the reported cases which I may refer to in this context. In Hanumantha Rao vs. Hanumayya 1964(1) An.WR. 156 a Division Bench of this Court has held that the adoption of a boy over 15 years belonging to kamma community in Andhra is valid in view of the existence of caste system by which boys aged more than 15 years can be adopted, which has been proved sufficiently by evidence on record."

17. The wording used in Section 10(iv) is custom or

usage. So, proof of anyone of them is sufficient since the disjunctive "or" is used. In order to prove a custom, it must be shown to be in existence since a long time. To prove usage, it need not be proved that it was in existence for such a long time.

18. At para-7 of the above judgment of the A.P. High Court, it is held as follows:

"7. The expression "custom or usage" would indicate that if either of the two is established by evidence, the exception must prevail. "Usage" cannot be equated to 'custom' which is now well settled to be of continuous one from time immemorial. The term "usage" according to Oxford dictionary means "manner of using or treating; habitual but not necessarily immemorial practice". Therefore, even if the practice of taking a boy or girl aged more than 15 years in adoption is proved to be in vogue, habitual practice though not necessarily immemorial as in the case of custom, has to be given effect to. If 'custom' and 'usage' are used for the same purpose, there is no necessity to use both the expressions and the expression "custom or usage" employed in Sec.10(iv) must have a specific purpose and the same has to be interpreted in a pragmatic, reasonable and practical way."

19

19. Therefore, considering the evidence of D.W.11 who has given evidence relating to the usage prevailing in their caste of adopting persons who are aged more than 15 years in the light of the exception carved out in Section 10(iv) of the Act and the interpretation given to the expression "usage" used in Section 10(iv) in the above judgment of this High Court, it is to be held that even if the defendant is found to be aged more than 15 years, it will not invalidate his adoption under Ex.B-4. Therefore, the contention of the plaintiff that

the adoption of the defendant under Ex.B-4 is not valid and no rights will be accrued to him in respect of the plaint schedule properties of late Satyavathi and Gani Raju holds no water and it is liable to be rejected. As per the evidence on record, it is proved with acceptable legal evidence that the defendant was given in adoption by his natural parents and he was taken in adoption by his adoptive parents and the said adoption is valid.

20. Section 16 of the Act is also relevant in the context to consider, which says that whenever there is a registered document purporting to be record of an adoption made and is signed by the person giving and the person taking the child in adoption, then it shall be presumed that the adoption has been made in compliance with the provisions of the Act, unless and until it is disproved. Here is a case where the factum of adoption is evidenced by Ex.B-4 registered adoption deed. Therefore, in view of Section 16 of the Act, when the

20

adoption was taken under a registered document, it shall be presumed that the adoption has been made in compliance with the provisions of the Act. So, it shall be presumed that all the requirements contemplated under Section 10 of the Act for valid adoption have been complied with in this case. It is a rebuttable presumption and the plaintiff can rebut the said presumption by adducing any direct evidence to that

effect or by showing any preponderance of probabilities.

He miserably failed to displace the said presumption either by adducing any direct evidence or by showing any preponderance of probabilities. Except making a bald

assertion that there was no giving and taking the child in adoption as required under Section 10 of the Act and that he is more than 15 years of age contrary to Section 10(iv) of the Act, he has miserably failed to substantiate the said contention. Therefore, even as per Section 16, it shall be

presumed that all the essential requirements are fulfilled relating to the adoption of the defendant under Ex.B-4.

Although it is sought to be contended that Ex.B-4 which is a certified extract cannot be admitted in evidence as secondary evidence, for valid reasons, the trial Court while discussing Section 65 of the Evidence Act and particularly Section 65E of the Evidence Act, which deals with admissibility of secondary evidence relating to certified copies of public documents, rejected the said contention and held that Ex.B-4 is admissible in evidence. This Court do not find

21

any legal flaw in the said findings recorded by the trial Court in dealing with all the said contentions raised by the plaintiff. Therefore, the point is answered accordingly and affirmatively in favour of the defendant and against the plaintiff holding that the defendant is the adopted son of late Satyavathi and Gani Raju under Ex.B-4 and that it is a valid adoption.

21. Points 2 and 3: It is the case of the plaintiff that he is the son of the brother of late Satyavathi and two years prior to her death, the defendant left her and went away to his natural parents and at that time, he took care of Satyavathi and he also admitted her in the hospital during her last days before her death and Satyavathi suffered from the ailment of paralysis on 09-5-1998 and on 08-5-1998 she executed a Will in his favour bequeathing her plaint schedule properties in his favour. Therefore, he became absolute owner of the said properties by virtue of the said Will after the demise of Satyavathi on 26-5-1998. The defendant denied that he left Satyavathi two years prior to her death and went away to his natural parents as she refused to give any property to him and he pleaded that on her advice that he went to see his wife and his newly born child at his in-laws' house in Karnataka State just a few days prior to her hospitalisation and on his return when he found that his house was under lock and key and on enquiry when he came to know that Satyavathi was in hospital, he went to the hospital and the defendant did not give keys of the house to him and as such he broke open the

22

lock of the door of the house. He denied that Satyavathi executed any such Will dated 08-5-1998 in favour of the plaintiff. It is also his case that there are several suspicious circumstances surrounding the Will which proves that it was

fabricated and it is not true and valid.

22. Therefore, the burden is on the propounder of the Will to remove all the said suspicious circumstances surrounding the Will and also to prove that Satyavathi has validly executed the said Will in his favour. The scribe of the Will and also the attestors of the Will are the residents of the other villages. The evidence of the scribe shows that he prepared the Will in the hall of the house of the plaintiff and the testator i.e. Satyavathi is in the other room and he has taken the Will after it was drafted by him into the room and obtained her thumb impressions on it. So, it is evident that the scribe has not drafted or prepared the Will in the presence of the testator Satyavathi. The Will was prepared in the hall while the testator is in other room. The scribe P.W.9 deposed that he maintains a register and enters the details of execution of Wills by him in the said register and submit the same annually before the Registrar for audit and that he did not enter the fact that he has drafted the present Will in question in the said register. However, it is stated by him in his re-examination that he only enters the details regarding the registered Wills in the said register and not unregistered Wills. In the further cross-examination, he stated that he

23

enters the fee collected by him for drafting the Wills.

So, considering this evidence on record of the scribe, the trial Court disbelieved valid execution of the Will and held that

there are several suspicious circumstances surrounding the said Will which the plaintiff as a propounder of the Will failed to remove such adverse circumstances surrounding the Will. No doubt, the mere fact that the scribe and attestors of the Will are from the other villages by itself cannot be a ground to disbelieve the Will as contended on behalf of the plaintiff while placing reliance on the judgment of the Madras High Court in A.Ramesh v. Manohar Prasad (AIR 1999 Madras 149) and also in S.Kaliyammal v. K.Palaniammal (AIR 1999 Madras 40) and the judgment of the Himachal Pradesh High Court in Naudha alias Bidha v. Sudarshan Singh (1998(3) Civil L.J. 830), wherein it is held that the mere fact that the attesting witnesses not belonging to village of testator cannot be termed as suspicious circumstances. Yet the law is equally well settled that each case has to be considered on its own merits of the case. Even though the above circumstance cannot be the sole factor to suspect the genuineness of the Will, when there is no acceptable explanation given for not choosing the local scribe and the witnesses and when the other circumstances emanating from the record which justifies the conclusion that there are strong suspicious circumstances surrounding the Will which are not removed by the propounder, then in appropriate cases, the Court is justified

in disbelieving the Will on the ground that strong suspicious

circumstances surrounding the Will are not removed by the propounder of the Will.

23. In the instant case, there are strong circumstances which are adversely surrounding the Will which throws any amount of suspicion over the genuineness of the Will which the plaintiff has miserably failed to remove the same.

The learned trial Judge has taken an extensive exercise of subjecting the evidence relating to the proof of Will adduced by the plaintiff to judicial scrutiny and recorded a finding that the plaintiff failed to remove the said suspicious circumstances surrounding the Will and that the Will is not valid and binding on the defendant. Upon reappraising the evidence on record, this Court also found that there are strong suspicious circumstances surrounding the Will which throws any amount of doubt regarding the genuineness and valid execution of the said Will and that the plaintiff failed to remove the same. The said suspicious circumstances are dealt with hereunder.

24. The contention of the plaintiff that the defendant never lived with Satyavathi is proved to be false from his own pleadings in the plaint. It is pleaded by him that two years prior to the death of Satyavathi, the defendant left her and went away to his natural parents, which clearly indicates that from the year 1991 when he was taken in adoption that the defendant was with Satyavathi and lived with her till 1996

even according to the case pleaded by the plaintiff in the plaint. So, this plea belies the contention of the plaintiff that the defendant never lived with Satyavathi after the adoption. So, when he has taken such false plea which is clearly borne out by the record i.e. from the pleadings and the evidence on record, it throws any amount of doubt regarding the genuineness of the valid execution of the Will. When the defendant admittedly lived with her till 1996 as per the case of the plaintiff and till she was hospitalised as per his case, it would be beyond the comprehension of any prudent man to believe that Satyavathi while completely ignoring his adopted son has executed a Will in favour of the plaintiff, who is the son of her brother who never looked after her affairs till she was hospitalised in the month of May, 1998. Further, as per the evidence on record and even as per the contents of the Will Ex.A-2, as can be seen from the last lines of the Will, it is evident that the testator Satyavathi was a signatory. It is stated that as she could not sign on that day due to her ailment that her thumb impression was taken. No medical evidence was adduced by the plaintiff to prove that she was unable to sign at the time of her ill health due to any physical disability or ill health. Therefore, obtaining the thumb impression of a person who is a signatory/testator is another strong suspicious circumstance impeaching the validity of the Will. Further, it is relevant to see that she is under the dominant influence of the plaintiff in her lonely state while

she was suffering from serious ill health and as such taking advantage of the said circumstances, obtaining her thumb impressions on a white paper in the said situation and thereafter fabricating a Will on the said papers also cannot be completely ruled out as contended by the defendant. Therefore, for all these reasons, it cannot be held that Ex.A-2 Will is a valid Will executed by the testator with an intention to bequeath all her properties in favour of the plaintiff.

25. Therefore, Ex.A-2 Will is not found to be validly executed by Satyavathi in favour of the plaintiff bequeathing her property in favour of the plaintiff. So, the plaintiff has failed to establish his title to the plaint schedule properties and that he has become an absolute owner of the said property. His entire case relating to declaration of his title is based on Ex.A-2 Will, which is now proved to be not valid and binding on the defendant. Therefore, this finding cuts the case of the plaintiff at its roots. In a suit for declaration of title or ejectment, the entire burden is on the plaintiff to prove his valid title to the plaint schedule property without depending on the weakness of the case of the defendant. Failure to prove his clear title to the disputed property non-suits the plaintiff. Therefore, as he failed to prove Ex.A-2 Will relied on by him and as it is found that he is not the absolute owner of the plaint schedule properties, he is not entitled to any declaration of his title to the plaint schedule

property. Consequently, he is not entitled to the relief of
27

ejection of the defendant who is in possession of the property therefrom. Therefore, these two points are also held affirmatively in favour of the defendant and against the plaintiff.

26. Point No.4: In view of the finding recorded on point No.1 that the defendant is the adopted son of Satyavathi and Gani Raju, under Ex.B-4 and that the said adoption is valid under law, he being the adopted son of Satyavathi and Gani Raju who are the absolute owners of the plaint schedule properties inherited the said property from Satyavathi and Gani Raju, who died intestate as it is found that Ex.A-2 Will is not valid and binding on the defendant. So, the defendant in his capacity as the adopted son of Satyavathi and Gani Raju, succeeded to their estate and became absolute owner of the plaint schedule property and he is entitled to enjoy the same. The point is answered accordingly in favour of the defendant.

27. Point No.5: The trial Court while answering issue Nos.4 to 7 particularly held that the defendant is entitled to have possession of the said plaint schedule property in his own right as he became the absolute owner of the said property as the adopted son of Satyavathi and Gani Raju.

The trial Court also while considering the facts and

circumstances of the case and the oral and documentary evidence and on proper appreciation of the same, arrived at a right conclusion that the adoption of the defendant under

28

Ex.B-4 is valid and that the Will Ex.A-2 set up by the plaintiff is not valid and binding on the defendant and held that the plaintiff is not the absolute owner of the said properties and the defendant is entitled to the same and recorded findings to that effect which are based on proper appreciation of evidence on record. Upon reappraisal of the said evidence on record, this Court also found that the adoption of defendant is valid and the Will set up by the plaintiff is not valid and binding on the defendant and that the defendant became the absolute owner of the said property in his capacity as the adopted son of Satyavathi and Gani Raju and that he is entitled to be in possession of the said property in question and enjoy the same. Therefore, the impugned judgment and decree of the trial Court are perfectly sustainable under law. They absolutely warrant no interference in this appeal and the appeal is liable to be dismissed as it is devoid of any merit. Hence, the point is answered accordingly.

28. Point No.6: In the result, the appeal suit is dismissed with costs. Pending applications, if any, shall stand closed.

CHEEKATI MANAVENDRANATH ROY, J.

07 May, 2020. th Ak HONOURABLE SRI JUSTICE CHEEKATI MANAVENDRANATH ROY 07th May, 2020.

(Ak)